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AFTER LEGAL INDETERMINACY: CARL SCHMITT AND THE NATIONAL SOCIALIST LEGAL ORDER, 1933-1936

William E. Scheuerman*

In the immediate aftermath of the National Socialist seizure of power, Germany's premier conservative jurist, Carl Schmitt, rushed to embrace Germany's new ruling elite. Soon after joining the Nazi Party on May 1, 1933, Schmitt was rewarded with a prestigious professorship in Berlin, the editorship of Germany's major legal publication, *Die Deutsche Juristen-Zeitung*, a leading post in the Nazi professors' guild, and the position of State Councillor (*Staatsrat*) to Prussia.¹ Most important perhaps, Schmitt's National Socialist period was his most prolific. Between 1933 and 1936 alone, Schmitt authored four books as well as over fifty essays for both academic and political journals. Waxing enthusiastic over Adolf Hitler and his struggle to "liberate" Germany from liberalism and Marxism, Schmitt repeatedly offered effusive praise for the emerging National Socialist legal order and the "national revolution" which made it possible. Most shocking of all, Schmitt's writings from this period are filled with crude anti-Semitic diatribes. In 1935, Schmitt described the Nuremberg racial laws as the foundations of a new German "constitution of freedom" (*eine Verfassung der Freiheit*).² In 1936 he played a major role in staging one of National Socialist jurisprudence's most horrible exercises in anti-Semitism, the infamous conference on "German Jurisprudence in Struggle Against the Jewish Spirit."³

Scholars continue to debate the significance of Schmitt's endorsement of National Socialism. In the English-language litera-

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¹ For a reliable account of Schmitt's activities during this period, see Manfred Wiegandt, *The Alleged Unaccountability of the Academic: A Biographical Sketch of Carl Schmitt*, 16 CARDOZO L. REV. 1569 (1995).

² Carl Schmitt, *Die Verfassung der Freiheit*, 40 DEUTSCHE JURISTEN-ZEITUNG 1133 (1935).

³ Carl Schmitt, *Die Deutsche Rechtswissenschaft im Kampf Gegen den Jüdischen Geist*, 41 DEUTSCHE JURISTEN-ZEITUNG 1193, 1199 (1936).

ture, Schmitt's anti-Semitic outbursts are still widely described as the mere "lip-service" of a traditional authoritarian, respectful of some important features of the rule of law, and basically hostile to the core of Nazi doctrine.⁴ The more sophisticated German-language scholarship on Schmitt better acknowledges his real enthusiasm for National Socialism. But much of this literature is so concerned with the biographical details of Schmitt's life during this period that it unduly downplays Schmitt's theoretical aspirations and agenda. These authors are able to tell us what Schmitt had for breakfast on any given day between 1933 and 1945, and they seem amazingly confident of their ability to recount his most intimate thoughts on a broad array of topics. Yet they have surprisingly little to say about the theoretical roots of Schmitt's contributions to an identifiably National Socialist legal order, despite the fact that this was Schmitt's main undertaking during the Nazi period.⁵

Here, I pursue an alternative interpretative path. Schmitt's embrace of National Socialism was far more than an expression of political opportunism, though Schmitt's vanity and careerism undoubtedly did play a role in his fateful decision to join ranks with National Socialism in 1933. Focusing here on Schmitt's writings between 1933 and 1936, I suggest that Schmitt's marriage to Nazism stems immanently from core elements of his jurisprudence. For Schmitt, a central problem of modern legal theory is the enigma of legal indeterminacy, according to which legal norms inevitably fail to provide meaningful guidance to legal decisionmakers. Schmitt sides with the Nazis because he sees them as offering a real chance for developing a novel legal system able to "solve" the dilemma of legal indeterminacy. Most shocking of all, he endorses the most terrible features of National Socialism—most importantly, its radical anti-Semitism—because he sees precisely these elements as indispensable to the task of constructing an alternative legal system capable of guaranteeing the determinacy allegedly missing from liberal law. In the analysis, I hope to overcome the divide between those who emphasize Schmitt's purportedly traditional legalist credentials and those who focus on his en-

⁴ For examples of this approach, see JOSEPH BENDERSKY, *CARL SCHMITT: THEORIST FOR THE REICH* (1983); GEORGE SCHWAB, *THE CHALLENGE OF THE EXCEPTION: AN INTRODUCTION TO THE IDEAS OF CARL SCHMITT BETWEEN 1921 AND 1936* (1989). I have criticized the apologetic overtones of these studies. See William E. Scheuerman, *The Fascism of Carl Schmitt: A Response to George Schwab*, 29 *GERMAN POL. & SOC.* 71, 71-79 (1993).

⁵ For an example of this burgeoning genre, see PAUL NOACK, *CARL SCHMITT: EINE BIOGRAPHIE* (1993).

thusiasm for the Nazi destruction of the rule of law. In my view, there is no question that Schmitt, in the 1930s, is concerned with reconceiving the fundamentals of legal determinacy; for this reason, Schmitt's writings from the Nazi period, at first glance, appear faithful to some traditional legal notions. But, essential to Schmitt's idiosyncratic quest to reconceive the possibility of legal determinacy is an open endorsement of dystopian National Socialist visions of a racially and ethnically homogeneous "folk community" (*Volksgemeinschaft*). In the final analysis, Schmitt's revised concept of legal determinacy breaks dramatically with the most humane elements of modern jurisprudence.

After examining Schmitt's analysis of the pervasiveness of legal indeterminacy in Part I, I explain why Schmitt believed that the National Socialist legal system alone is able to overcome legal indeterminacy and secure a novel form of post-liberal legal determinacy (Part II). I then discuss the failings of Schmitt's reconceptualization of legal determinacy (Part III), as well as its broader contemporary implications (Part IV). The problem of legal indeterminacy continues to excite the interest of many jurists. Carl Schmitt's contribution to the debate on legal indeterminacy may contain some important lessons for contemporary legal theory.

I.

Throughout the Weimar period, Carl Schmitt underscored the limitations of the traditional liberal preference for a binding and relatively determinant legal order able to provide effective direction to those who apply and interpret the law. His argumentation generally focused on two core challenges to the liberal rule of law.⁶

First, Schmitt argued that every legal interpretation inevitably includes an unpredictable "pure decision" that cannot be unambiguously justified by reference to the legal norm at hand.

Every legal thought brings a legal idea, which in its purity can never become reality, into another aggregate condition and adds an element that cannot be derived either from the content of the legal idea or from the content of a general positive legal norm that is to be applied.⁷

⁶ See WILLIAM E. SCHEUERMAN, *BETWEEN THE NORM AND THE EXCEPTION: THE FRANKFURT SCHOOL AND THE RULE OF LAW* 69-80 (1994) (focusing on Schmitt's Weimar-era reflections on legal indeterminacy in much greater depth); William E. Scheuerman, *Legal Indeterminacy and the Origins of Nazi Legal Thought: The Case of Carl Schmitt*, 17 HIST. POL. THOUGHT 571 (1996).

⁷ CARL SCHMITT, *POLITICAL THEOLOGY: FOUR CHAPTERS ON THE CONCEPT OF SOVEREIGNTY* 30 (George Schwab trans., MIT 1985) (1922).

By failing to take the independent dynamics of legal decision-making seriously, liberalism succumbs to a crude "normativism" which falsely downplays the role of legally unregulated acts of power within legal interpretation. Liberalism tends to favor a model of legal decisionmaking in which legal interpretation becomes nothing but an act of mechanical subsumption. For Schmitt, this error is most egregious in classical liberal authors like Montesquieu. Yet more modern authors—most notably, Schmitt's rival, Hans Kelsen—succumb to it as well.⁸

Second, Schmitt noted early on that even liberal democratic polities increasingly rely on legal forms incompatible with the traditional liberal preference for relatively clear, general norms. Wherever the interventionist state entails intensive regulation of the economy, the significance of classical general legal norms within the legal order is dramatically reduced. The proliferation of vague clauses and principles within contemporary law (for example, "in good faith," "in the public interest"), driven primarily by the inexorable expansion of state action in the modern capitalist economy, merely exacerbates the underlying weaknesses of traditional liberal conceptions of judicial decisionmaking: vague clauses allow those who apply and interpret the law to act in distinct and potentially inconsistent ways. In addition, administrative decrees and individual measures, by means of which substantial and oftentimes poorly regulated discretionary power is handed over to the executive, increasingly seem to become part and parcel of the everyday operations of the legal system. In Schmitt's prognosis, this trend suggests that classical attempts to clearly distinguish between the state of legal normalcy and the state of emergency have failed.⁹ When Schmitt, in 1922, bluntly declared that "[a]ll law is situational law," he was making much more than an abstract legal philosophical observation about the relationship between legal normalcy and the crisis situation.¹⁰ From another perspective, he was merely offering an empirical chronicle of the ongoing decay of the liberal vision of a neatly codified system of cogent general norms capable of providing real guidance to legal decisionmakers.

⁸ Kelsen is the immediate target of much of Schmitt's theory. This is captured particularly well by David Dyzenhaus' excellent text. See DAVID DYZENHAUS, *LEGALITY AND LEGITIMACY: CARL SCHMITT, HANS KELSEN, AND HERMANN HELLER IN WEIMAR* (1997).

⁹ This trend has been anxiously thematized by other authors as well. See, e.g., CLINTON L. ROSSITER, *CONSTITUTIONAL DICTATORSHIP* (1948); Jules Lobel, *Emergency Power and the Decline of Liberalism*, 98 YALE L.J. 1385 (1989).

¹⁰ SCHMITT, *supra* note 7, at 13.

By 1933, Schmitt's account of the problem of legal indeterminacy takes on drastic proportions. Whereas many of his Weimar writings on the problem of judicial decisionmaking could be taken as implying that a relative indeterminacy, long downplayed by liberal jurists, characterizes the legal system, Schmitt's position now comes to approximate what contemporary jurists today commonly describe as the radical indeterminacy thesis. In this view, "decisions officials make about the meaning of rules amount to creating meaning for the rules when there is none to begin with,"¹¹ and all legal cases are "hard cases." In every legal situation, any conceivable result can be justified by the legal materials at hand. According to the radical indeterminacy thesis, "a competent adjudicator can square a decision in favor of either side in any given lawsuit with the existing body of legal rules."¹²

Seeking to downplay the controversial character of this position, Schmitt introduces his version of the radical indeterminacy thesis by claiming that even those long under the magical spell of liberal normativism have begun to openly acknowledge its fraudulent analytical core. He attributes his own insight about the basic failings of liberal legalism to a conversation—according to Schmitt, "one of the greatest experiences and meetings which drove me as a jurist to National Socialism"—with an unnamed "world-famous, wise and experienced seventy-year old American jurist," who allegedly commented to Schmitt that "today we are experiencing the bankruptcy of all *idées générales*."¹³ Enlightenment universalism is dead. For Schmitt, indisputable evidence for this death is the utter failure of clarity and generality in law to guarantee the predictability and determinacy that liberals long promised that it could secure.

¹¹ ANDREW ALTMAN, *CRITICAL LEGAL STUDIES* 91 (1990) (discussing the radical indeterminacy thesis in contemporary jurisprudence).

¹² Lawrence B. Solum, *On the Indeterminacy Crisis: Critiquing Critical Dogma*, 54 U. CHI. L. REV. 462, 462 (1987).

¹³ Carl Schmitt, *Nationalsozialistisches Rechtsdenken*, 4 DEUTSCHES RECHT 224, 225 (1934). Some evidence suggests that the unnamed American jurist here may have been Roscoe Pound. During a highly controversial visit to Austria and Germany in 1934 that garnered extensive coverage in the American press, Pound insisted to reporters that evidence of brutality in Central Europe had been greatly exaggerated. In addition, he dryly described Hitler as "a man who can bring [the Central Europeans] freedom from agitating movements." DAVID WIGDOR, *ROSCOE POUND: PHILOSOPHER OF LAW* 250-51 (1974). According to one report, Pound met with faculty members at the University of Munich in 1934. In September 1934, he was awarded an honorary degree from the law faculty of the University of Berlin, whose most important faculty member at that point was no other than Carl Schmitt. See Charles A. Beard, *Germany up to Her Old Tricks*, 80 NEW REPUBLIC 299 (1934).

Schmitt now argues that the liberal preference for cogent general legal norms inevitably reduces the legal order to a situation of "chaos" and "anarchy," unable to provide a minimal measure of legal predictability.¹⁴ General legal norms merely function as a normativistic "mask" for the reality of radical indeterminacy because even the clearest general norm is unable to provide any help to legal decisionmakers. Legal categories possessing real generality are, by definition, unlikely to speak to the concrete details of the case at hand. Schmitt is surely aware that he is hardly the first legal thinker to acknowledge that some tension between general rules and particular cases is probably unavoidable; of course, liberal jurists themselves long have acknowledged this problem. But Schmitt believes that liberals obscure the depth of the dilemma at hand. In particular, ambitious dreams of a codified set of abstract categories and rules badly exacerbate the tension between rules and individual cases. By demanding that the legal code consist of rules and categories having an ever more general and abstract character, liberalism seeks a legal code profoundly alien from the real life demands of everyday legal experience. In short, liberals strive for a legal code unlikely to speak to the needs of the legal decisionmaker struggling with the concrete details of everyday life, thereby creating an excessively artificial, and probably even fictional, legal universe inevitably having highly open-ended implications for the judge and administrator.¹⁵

In this account, the inherent artificiality of liberal law simultaneously stems from the fact that the traditional liberal preference for fixed or codified law heightens the gap between the legal code and the concrete tasks faced by judges and administrators. Schmitt recalls another widely acknowledged limitation of liberal general law, namely, the fact that statutes always represent a potentially static "fixation" of a legislative act that, by necessity, occurs before a judicial or administrative actor applies the statute. Once again, Schmitt claims that this failing has more serious consequences than liberals concede. Although liberal law by nature is "oriented towards the past" (*vergangenheitsbezogen*), the dictates of modern social and economic life demand a legal system conducive to a future-oriented steering of complex, ever-changing economic and social scenarios. Radicalizing his earlier Weimar-era reflections on the challenges posed by the interventionist state to

¹⁴ See Carl Schmitt, *Unsere Geistige Gesamtlage und Unsere Juristische Aufgabe*, 1 ZEITSCHRIFT DER AKADEMIE FÜR DEUTSCHES RECHT 11, 12 (1934).

¹⁵ See Schmitt, *supra* note 13, at 227-28.

the rule of law, Schmitt, in the mid 1930s openly argues that the liberal insistence on fixed laws, possessing stability and some degree of permanence, fundamentally conflicts with the dictates of modern state activity. Although emphatically emphasizing his hostility to Marxist conceptions of a planned economy, Schmitt boldly asserts the necessity of a post-liberal legal order possessing novel legal instruments able to coordinate a wide range of economic activities far better than the blunt and unduly static instrument of fixed, general law. Writing in 1935, Schmitt asserts that no better example of the "hostility to planning" (*planfeindlichkeit*) inherent in liberal legalism can be identified than the United States Supreme Court's recent attack on the New Deal. In his interpretation, Roosevelt's opponents on the Court are absolutely right to see the open-ended, highly discretionary, situation-specific elements of New Deal legislation as inconsistent with the fundamentals of liberal jurisprudence. But they are utterly mistaken in their failure to acknowledge the necessity of such post-liberal legal forms in the era of the modern interventionist state.¹⁶ In this analysis, pervasive legal indeterminacy is a natural byproduct of modern forms of state "steering."

Schmitt also undertakes to make modern pluralism responsible for the deeply indeterminate character of all law. In *State, Movement, Folk*, written in 1933, in the immediate aftermath of Hitler's ascent to power, Schmitt writes that:

[w]e have already reached the point in legal theory and practice where we quite seriously have to ask the epistemological question of to what extent a word or concept of the legislator can really bind those who have to apply the law at all. We have seen that every word and every concept immediately becomes controversial, unsure, indeterminate, and wavering when in a fluctuating situation different spirits (*Geister*) and interests try to make use of them.¹⁷

¹⁶ See Carl Schmitt, *Die Rechtswissenschaft im Führerstaat*, 2 ZEITSCHRIFT DER AKADEMIE FÜR DEUTSCHES RECHT 435, 438-40 (1935) [hereinafter Schmitt, *Die Rechtswissenschaft*]. Schmitt advocates a form of state interventionist capitalism, but one in which a substantial amount of autonomy over fundamental economic decisions is left in the hands of private business. See Carl Schmitt, *Starker Staat und Gesunde Wirtschaft*, 2 VOLK UND REICH 81 (1933) (emphasizing the essentially capitalist core of this model); see also William E. Scheuerman, *The Unholy Alliance of Carl Schmitt and Friedrich A. Hayek*, 4 CONSTELLATIONS 172 (1997).

¹⁷ CARL SCHMITT, STAAT, BEWEGUNG, VOLK 43 (1933). The word "spirit" (*Geist*) is extremely difficult to translate. *Geist* is "the creative, forming impulse in culture [I]t refers to the shaping faculties of inwardness rather than the more receptive (and personal) faculties of *Seele* (soul). *Geist* suggests not only logical thought but also those capacities

Radical indeterminacy characterizes even the most cogent legal concepts because indeterminacy derives, first and foremost, from the reality of radically distinct "spirits and interests" which inevitably try to make the law serve altogether different ends. In an implicit criticism of Max Weber, Schmitt questions Weber's liberal faith that a minimal degree of legal determinacy is still possible in a disenchanted world characterized by an awesome array of competing gods.¹⁸ For Schmitt, even the relatively modest "rational legality" endorsed by Weber is necessarily a sham when jurists outfitted with the authority to interpret and apply the law pursue diametrically opposed moral and political agendas. In a modern pluralistic universe, legal determinacy is simply unachievable, because the demise of a widely shared, homogeneous world view means that those who interpret even the most crystal clear legal concept will do so in different ways.

In an especially portentous line of inquiry, *State, Movement, Folk* goes on to offer an unambiguously ethnicist gloss on the nature of modern pluralism.¹⁹ Schmitt focusses on what he describes as the "existential" determinants of legal interpretation:

[i]t is an epistemological verity that only those are capable of seeing the facts [of the case] the right way, listening to statements rightly, understanding words correctly and evaluating impressions of persons and events rightly, if they are participants in a racially determined type (*artbestimmten Weise*) of legal community to which they existentially belong.²⁰

The "ethnically alien" are purportedly incapable of interpreting German law in a manner consistent with ethnic Germans. In what undoubtedly belongs among the most astonishing reworkings of a classical liberal argument in our century, Schmitt reminds the reader of Montesquieu's famous description of the

for understanding which can be found in literature, religion, and other life-teachings." DAVID S. LUFT, ROBERT MUSIL AND THE CRISIS OF EUROPEAN CULTURE 1880-1942 at x-xi (1980). For Schmitt, *Geist* takes on unambiguously ethnic and even racist connotations during the 1930s.

¹⁸ For an account of Weber's legal theory, see ANTHONY T. KRONMAN, MAX WEBER (1983).

¹⁹ I use the term "ethnicist" in the sense described by Ulrich Preuß. As Preuß has noted, Schmitt's theory rests on a substitution of the *ethnos* for the *demos*: *das Volk* is envisioned as an "ethnic and cultural oneness [having a] capacity to realize its otherness in relation both to other peoples and the liberal-universalist category of mankind." Ulrich Preuß, *Constitutional Powermaking for the New Polity: Some Deliberations on the Relations Between Constituent Power and the Constitution*, 14 CARDOZO L. REV. 639, 650 (1993).

²⁰ SCHMITT, *supra* note 17, at 45.

judge as a mere "*la bouche, qui prononce les paroles de la loi*."²¹ Yet Schmitt claims that this early statement of liberal hostility to judicial discretion needs to be reconstructed in light of the widely accepted "epistemological verity" that different ethnic groups possess fundamentally distinct cultural and biological characteristics.²² In contrast to our naïve, universalistic, Enlightenment forefathers, Schmitt comments that those of us rightly more "sensitive" to the implications of ethnic difference "now see . . . the difference of the different mouths, which pronounce seemingly similar words and sentences differently. We notice how they 'pronounce' the same words so differently."²³ For Schmitt, ethnically based variations in "the mouths" that "pronounce" the law are a major source of the crisis of legal indeterminacy. Because the "existential determination" of legal decisionmaking no longer rests on a common ethnic and intellectual basis, legal interpretation today inevitably is opened and fundamentally indeterminate.

How are we to interpret Schmitt's defense here of the "existential determination" of legal interpretation? As we will see in just a moment, Schmitt himself quickly proceeds to use this argument in order to justify National Socialist ethnic cleansing.²⁴ Nonetheless, many commentators rely on biographical evidence—for example, Schmitt's relatively good ties to German Jews during the Weimar period—in order to downplay Schmitt's overtly ethnicist arguments here.²⁵ At the same time, more recent biographical research documents that Schmitt threw himself into a rather suspect literature on the difficulties of Jewish assimilation during this period, as well as the possibility that Schmitt's private life even before the National Socialist takeover exhibited the knee-jerk anti-Semitic prejudices common to those of his generation and social

²¹ CHARLES DE SECONDAT DE MONTESQUIEU, *DE L'ESPRIT DES LOIS* bk. 11, ch. 6 (1748).

²² The word "biological" is Schmitt's own. This would seem to counter those who have insisted that Schmitt endorsed a traditional Catholic anti-Judaism but hardly radical Nazi anti-Semitism. See SCHMITT, *supra* note 17, at 45. It is also striking that Schmitt can be read elsewhere as criticizing Italian fascism for "ignoring" the importance of racial difference. See Carl Schmitt, *Faschistische und Nationalsozialistische Rechtswissenschaft*, 41 *DEUTSCHE JURISTEN-ZEITUNG* 619 (1936).

²³ SCHMITT, *supra* note 17, at 45.

²⁴ See Carl Schmitt, *Das Gute Recht der Deutschen Revolution*, WESTDEUTSCHER BEOBACHTER, May 12, 1933, at 1 [hereinafter Schmitt, *Das Gute Recht*]; Carl Schmitt, *Ein Jahr Deutscher Politik*, WESTDEUTSCHER BEOBACHTER, July 23, 1933, at 1.

²⁵ Reference typically is made to Schmitt's dedication of his most important Weimar study to a Jewish friend, Dr. Fritz Eisler. See CARL SCHMITT, *VERFASSUNGSLEHRE* (1928).

and religious background.²⁶ Such evidence might imply that for Schmitt, National Socialism simply served to legitimize an open, public expression of deeply rooted anti-Semitic prejudices. But the more important point is that the results of biographical research on Schmitt are likely to remain highly open-ended in character; it is too much to expect any biographer to be able to tell us exactly what Schmitt "really" was thinking when he chose to ally himself with National Socialism.²⁷

In my view, this leaves those hoping to get to the roots of Schmitt's National Socialist writings with only one option: we need to take Schmitt's legal argumentation seriously. When we do so, Schmitt's contributions from the National Socialist period exhibit a terrible—yet undeniably systematic—logic.

II.

Between 1933 and 1936, Carl Schmitt struggles to provide an answer to the enigma of legal indeterminacy. Clearly unsatisfied with the more dramatic implications of the radical indeterminacy thesis, Schmitt's quest to overcome indeterminacy leads him to posit a post-liberal conception of legal determinacy that builds directly on core features of National Socialism.

At first glance, Schmitt's most important work in legal theory from the mid-1930s, *On Three Types of Jurisprudential Thinking*, seems to buttress the view of those who emphasize Schmitt's Catholicism.²⁸ Developing a theory of what he describes as "concrete order legal thinking" as an alternative both to liberal normativism and a "decisionism" in which an unregulated act of power, an "empty decision," is taken to be the core of legal experience, Schmitt here openly concedes his debt to the institutionalism of Catholic theorists Maurice Hauriou and Georges Renard.²⁹ In fact, the opening section of *On Three Types of Jurisprudential Thinking* describes the "Aristotelian-Thomist natural law of the

²⁶ See ANDREAS KOENEN, DER FALL CARL SCHMITTS: SEIN AUFSTIEG ZUM "KRONJURISTEN DES DRITTEN REICHES" 315-16, 357-59, 372-73 (1995).

²⁷ For an insightful methodological critique of Schmitt's biographers, see Ingeborg Maus, *Die Bekenntnisse der Unpolitischen: Zur Gegenwärtigen Carl Schmitt-Renaissance aus Anlaß einer Biographie*, FRANKFURTER RUNDSCHAU, Apr. 2, 1994, at 1.

²⁸ For the most sophisticated version of this type of interpretation, see KOENEN, *supra* note 26.

²⁹ See W. Ivor Jennings, *The Institutional Theory*, in MODERN THEORIES OF LAW (W. Ivor Jennings ed., 1933) (discussing Catholicism and legal institutionalism); see also CARL SCHMITT, ÜBER DIE DREI ARTEN DES RECHTSWISSENSCHAFTLICHEN DENKENS 54-55 (1934).

medieval period” as a forerunner to Schmitt’s own concrete orders thinking.³⁰ Despite Schmitt’s express homage here to some strands of twentieth century Catholicism, it would nonetheless be misleading to ignore the crucial ways in which Schmitt breaks radically with institutionalism. Schmitt’s own comment that he prefers the term “concrete orders thinking” in order to prevent any possible confusion with Catholic jurisprudence, deserves to be taken seriously.³¹ Never hesitating to describe the Nazi destruction of the liberal rule of law as a perfect expression of concrete orders thinking, Schmitt’s differences vis-a-vis institutionalism becomes crystal clear in those sections of the study where Schmitt unabashedly endorses the most worrisome aspects of the emerging National Socialist legal order. The Nazi labor law reforms of 1934, which reclassified employees as “disciples” (*Gefolgschaft*) while stripping them of basic workplace protections, is described by Schmitt as the clearest possible real life expression of concrete orders thinking, while the introduction of the concept of the legally unregulated “Leader” (*Führer*) into the core of German public law garners Schmitt’s enthusiastic endorsement.³² For Schmitt, concrete orders thinking requires nothing less than the supremacy of the National Socialist movement in relation both to the traditional state apparatus and the German “folk” (*Volk*).³³

Schmitt also links concrete orders thinking to anti-Semitism. Universalistic liberal normativism is taken to be a “typically Jewish” mode of legal analysis. For Schmitt, those who acknowledge the basic truths of concrete orders thinking purportedly grasp that every ethnic group has a system of law particular to its special attributes. Concrete orders thinking thereby demands nothing less than that ethnic Germans free themselves from “alien” legal and intellectual influences—most importantly, “Jewish” conceptions of the rule of law emphasizing the importance of formal protections

³⁰ See SCHMITT, *supra* note 29, at 7.

³¹ See *id.* at 57-58.

³² See *id.* at 63-64.

³³ This is the basic argument of Schmitt. See SCHMITT, *supra* note 17; see also CARL SCHMITT, *STAATSGEFÜGE UND ZUSAMMENBRUCH DES ZWEITEN REICHES* (1934) (providing a prehistory of the Nazi “movement-dominated” state). Schmitt’s attempt to develop a tripartite state theory, in which the National Socialist movement possesses supremacy, garnered criticism from competing Nazi ideologues who worried that Schmitt’s description of the “folk” as nonpolitical unfairly downplayed the supposedly democratic character of National Socialism. “It was argued against Schmitt that the people is not non-political but political, that it is the *Urkraft* or primeval force from which all individuals derive their rights.” FRANZ L. NEUMANN, *BEHEMOTH: THE STRUCTURE AND PRACTICE OF NATIONAL SOCIALISM* 66 (1942).

and procedures.³⁴

For purposes here, the concrete order theory, as developed by Schmitt between 1933 and 1936, is revealing for two main reasons. First, it represents the perfect theoretical expression of Schmitt's hostility to liberal conceptions of a system of codified, general law. Its underlying insight is that society needs to be conceived as a series of variegated communities or "orders" having highly specific needs resistant to codification by general legal norms or concepts. For Schmitt, it is inappropriate to apply a liberal model of the legal system—in which law supposedly is modeled on a set of calculable traffic regulations—to complex, situation-specific institutions such as the family or workplace. The core experiences of these concrete orders, allegedly best captured by old-fashioned terms such as faith, discipline, and honor, simply cannot be subsumed under any set of general norms.³⁵ Even liberal concepts of state sovereignty need to be jettisoned in favor of the idea of a concrete "folk community," whose immanent dynamics unerringly conflict with the normativistic aspirations of liberal jurisprudence.³⁶ Quite consistently, Schmitt describes the proliferation of vague, open-ended standards, as well as the widespread tendency in contemporary law to blur the distinction between general and situation-specific, individual law, as empirical evidence that legal development everywhere increasingly approximates the theoretical tenets of concrete orders thinking. The fact that National Socialism embraces the trends towards open-ended, situation-specific law more systematically than liberal democracy simply proves for Schmitt that it alone represents a quintessentially modern legal system—"a state for the twentieth century"—perfectly attuned to the exigencies of contemporary legal development.³⁷ The logical conclusion of the ongoing conflation of legislative and administrative power is nothing

³⁴ See Schmitt, *supra* note 13, at 226. For a documentation of Schmitt's numerous anti-Semitic comments from this period, see BERND RÜTHERS, *CARL SCHMITT IM DRITTEN REICH* (2d ed. 1990). For Schmitt's association of "empty" formalistic elements of the rule of law with Judaism, see Carl Schmitt, *Der Rechtsstaat*, NATIONALSOZIALISTISCHES HANDBUCH FÜR RECHT UND GESETZGEBUNG 6 (Hans Frank ed., 1935) (referencing "Stahl-Jolson").

³⁵ See SCHMITT, *supra* note 29, at 52.

³⁶ For a discussion of this element of Schmitt's theory, see Franz L. Neumann, *The Change in the Function of Law in Modern Society*, in *THE RULE OF LAW UNDER SIEGE: SELECTED ESSAYS OF FRANZ L. NEUMANN AND OTTO KIRCHHEIMER* 134-35 (William E. Scheuerman ed., 1996).

³⁷ See Carl Schmitt, *Der Staat des 20. Jahrhunderts*, WESTDEUTSCHER BEOBACHTER, June 28, 1933, at 1 (introducing the term "state for the twentieth century" which becomes one of Schmitt's stock phrases during this period).

less than a "Leader State" (*Führerstaat*) in which the Leader possesses unlimited legislative and administrative authority.³⁸ Whereas liberal democratic polities continue to pretend that clear general norms are the best way of legally regulating complex activities, Nazism heroically "crosses the rubicon" by systematically abandoning even the most meager remnants of this illusion.³⁹ In short, the theory of concrete orders rests on the assumption that the liberal quest for determinate, general law is inherently flawed. For Schmitt, the ills of this quest must be attributed to the impossibility of the liberal attempt to gain some measure of legal determinacy by means of the cogency and generality of the legal norm.

Second, the theory of concrete orders points the way toward Schmitt's quest to articulate a post-liberal conception of legal determinacy, while building explicitly on his analysis of the irrepressible indeterminacy of liberal general law. *On Three Types of Jurisprudential Thinking* clearly shirks from one possible implication of the author's endorsement of the radical indeterminacy thesis. The radical indeterminacy thesis might imply that we need to conceive any act of legal interpretation as nothing but an altogether willful "decision not based on reason and discussion and not justifying itself . . . an absolute decision created out of nothingness."⁴⁰ In short, one could simply opt to celebrate the fact that legal interpretation inevitably consists of a series of expressions of more or less arbitrary, legally unharnessed power. But Schmitt adamantly criticizes precisely this possibility, warning that decisionism "runs the risk of missing the stable content" in law.⁴¹ A rigorous decisionist legal theory reduces law to an altogether arbitrary, and potentially inconsistent, series of power decisions, and thus proves unable to secure even a modicum of legal determinacy. It represents a theoretical recipe for a legal system characterized by a kind of permanent revolutionary dictatorship, in which judicial activity represents nothing but a momentary expression of the

³⁸ See Carl Schmitt, *Der Führer schützt das Recht*, in POSITIONEN UND BEGRIFFE IM KAMPF MIT WEIMAR-GENÈ-VERSAILLES 1923-1939, at 199 (Carl Schmitt ed., 1940).

³⁹ See Schmitt, *Die Rechtswissenschaft*, *supra* 16, at 438-39. For an interpretation that correctly focusses on the central part of Schmitt's analysis of the decay of the classical liberal concept of the general legal norm, see Ingeborg Maus, "Gesetzesbindung" der Justiz und die Struktur der Nationalsozialistischen Rechtsnormen, in RECHT UND JUSTIZ IM DRITTEN REICH 81 (Ralf Dreier & Wolfgang Sellert eds., 1989).

⁴⁰ SCHMITT, *supra* note 7, at 66.

⁴¹ *Id.* at 3. Schmitt is intent in this period on showing that National Socialist law, if built on the foundations sketched out by his theory, need not take an arbitrary (*willkürlich*) form. For a particularly clear statement of this view, see Carl Schmitt, *Nationalsozialismus und Rechtsstaat*, 63 JURISTISCHE WOCHENSCHRIFT 90 (1934).

will of whatever group happens to exercise power over those who interpret and apply the law. Decisionism, at best, simply reproduces the ills of liberal legalism, and, at worst, makes a virtue out of liberalism's most telling jurisprudential vice.

Schmitt's most astute critics argue that it would be best to take his attempt here to criticize decisionism with a grain of salt. For such commentators, concrete orders thinking itself is simply an "ideology" masking the reality of a National Socialist legal system fundamentally decisionist in character.⁴² Yet, National Socialist law was clearly not decisionist if decisionism entails that judges and administrators can freely interpret and apply the law in any way they happen to consider appropriate at any given moment; Nazi-era judges were not free to decide in ways incompatible with National Socialist ideology. Although I take the decisionist characterization of Schmitt's Nazi-era theory as an understandable attempt to capture how Schmitt makes a mockery of even a minimally acceptable conception of law, it remains crucial that we carefully trace the underlying logic of Schmitt's quest to reconceive the possibility of a novel form of legal determinacy. Only by doing so can we begin to understand why Schmitt's theory proved so useful to the Nazis. A decisionist model of legal interpretation, in which legal actors are free to act against National Socialist principles, as well as in favor of them, would not have been as helpful to the Nazis as Schmitt's own.

Of course, *State, Movement, Folk* intimated one possible path for salvaging a legal system relatively determinant and predictable in character: if a central source of legal indeterminacy lies in the heterogeneous character of those who interpret and apply the law, then the establishment of homogeneity within the ranks of German jurisprudence might go at least some way towards making legal predictability a real possibility. Although it is hopeless to expect much from a reform of the legal code, a radical reconstitution of jurists themselves (*Juristenreform*) might counteract some of the dangers at hand. In Schmitt's own words:

[t]here is only one path [to legal determinacy]; the National Socialist state has decisively followed this path, and Rudolf Freisler captured its essence with the greatest clarity with the demand "Reform of the Jurists Instead of Reform of the Law." If there is still to be an independent judiciary despite the fact that a mechanical and automatic binding of the judge to a pre-existing set of codified norms is no longer possible, then every-

⁴² See Neumann, *supra* note 36, at 138.

thing depends on the nature and make-up of our judges and administrators.⁴³

In my reading of Schmitt's writings from this period, his enthusiastic engagement for National Socialism can be directly traced to this eerily straightforward set of axioms. Because of Schmitt's overtly ethnicist gloss in *State, Movement, Folk* on the sources of modern pluralism, only one solution is left here for re-establishing some measure of legal determinacy: an ethnically homogeneous caste of judicial experts dedicated to an equally homogeneous world view. In this fashion, the imperatives of Schmitt's legal theory in the mid-1930s come to intersect neatly with National Socialist racism and anti-Semitism. Just as the demand for ethnic and racial homogeneity (*Artgleichheit*) constitutes a core element of National Socialism,⁴⁴ so too does Schmitt's attempt to formulate a third jurisprudential path beyond the Scylla of decisionism and Charybdis of liberal normativism require an ethnically and racially homogeneous rank of jurists.

In fact, it is precisely the task of establishing an ethnically and methodologically homogeneous estate (*Stand*) of legal practitioners that takes on absolute primacy both for Schmitt the legal theorist, and Schmitt, the Nazi functionary, between 1933 and 1936. In a host of shameful essays, Schmitt enthusiastically endorses the Nazi quest to guarantee ethnic and racial homogeneity within Germany.⁴⁵ Unsurprisingly, he pays special attention to the implications of this quest for German jurisprudence: Schmitt repeatedly proclaims that the creation of ethnic homogeneity is the only way Germany can hope to establish a relatively determinant and predictable system of law. As a leader of the Nazi professors' guild, Schmitt in this period emphasizes the implications of this position for the reform of legal education as well. He not only endorses the purging of racially "alien" faculty members, but quite consistently calls for a corresponding ethnic cleansing of university

⁴³ SCHMITT, *supra* note 17, at 44.

⁴⁴ For an acknowledgment of the central place of the ethnic homogeneity to Nazism, see Carl Schmitt, *Ein Jahr Nationalsozialistischer Verfassungsstaat*, 4 DEUTSCHES RECHT 27, 29 (1934). Schmitt makes the connection between the core of National Socialism and his vision of Nazi law crystal clear: "the underlying legal conception, that permeates and buttresses the whole legislative task that lies before us, can be captured by one word: homogeneity." Schmitt, *Das Gute Recht*, *supra* note 24, at 1.

⁴⁵ The most shocking of these endorsements is surely where Schmitt argues that the Nuremberg racial laws should be viewed as a guide, telling judges and administrators how they are to interpret all elements of the German legal system. In this respect, they represent a preamble for German law as a whole, and thus a specifically National Socialist "constitution." See Schmitt, *supra* note 2.

libraries and reading lists.⁴⁶ At times, Schmitt seems to suggest that the mere fact of ethnic homogeneity suffices to establish a "spiritually" homogeneous jurisprudence. More commonly, his polemics from this period imply that ethnic homogeneity, in conjunction with an explicitly National Socialist legal education and training, can create an homogeneous caste of future jurists likely to interpret and apply necessarily indeterminate legal clauses in a consistent manner. Ethnic homogeneity, it seems, is a necessary, but not a sufficient, condition of a determinant system of legal decisionmaking. Thus, homogeneity needs to be complemented with a system of education able to keep aspiring judges and lawyers free from the taint of ethnically "alien" intellectual influences. In this spirit, Schmitt openly praises the Nazi destruction of scientific pluralism in Germany's once impressive legal faculties,⁴⁷ while simultaneously demanding that faculty members, intent on guaranteeing that Nazism avoid the dual ills of normativism and decisionism, make absolutely sure that the basic verities of National Socialism are drummed into the minds of aspiring lawyers and judges. Although conceding that the reconstruction of German jurisprudence along such ambitious lines is unlikely to be achieved within a mere few years, Schmitt never hesitates to praise the ruthless manner with which National Socialism has already begun to cleanse Germany of ethnically alien elements and the liberal normativism allegedly so popular among them.

No less revealing are Schmitt's contributions to a series of crucial debates within National Socialist jurisprudence during the first five years of the new regime. In an important recent essay, Peter Caldwell challenges the myth that Schmitt's theoretical position within National Socialist jurisprudence was consistently more moderate than that of rivals, such as Otto Koellreutter, who embraced Nazism well before Schmitt.⁴⁸ For our purposes here, it is especially striking to note the manner in which Schmitt's attempt to construct an identifiably National Socialist conception of legal

⁴⁶ See Schmitt, *supra* note 3, at 1194-97.

⁴⁷ See Carl Schmitt, *Bericht über die Fachgruppe Hochschullehrer im BNSDJ*, 4 DEUTSCHES RECHT 17 (1934). My impression is that the biographical literature on Schmitt misses the extent to which he envisioned himself as something of a "founding father" for a new generation of National Socialist jurists. Schmitt's didactic concerns during this period come out clearly in a number of essays. See, e.g., Carl Schmitt, *Über die neuen Aufgaben der Verfassungsgeschichte*, in POSITIONEN, *supra* note 38, at 229.

⁴⁸ See Peter Caldwell, *National Socialism and Constitutional Law: Carl Schmitt, Otto Koellreutter, and the Debate over the Nazi State, 1933-1937*, 16 CARDOZO L. REV. 399 (1994).

interpretation rests on the twin pillars of the programmatic agenda described above: Schmitt considers the liberal quest to gain determinacy by means of clear general norms doomed, but he simultaneously hopes that some measure of determinacy might be achieved by a reconstitution of the ranks of German jurisprudence. By systematically developing this line of argumentation, Schmitt offers a brand of jurisprudence particularly well-suited to the political needs of the National Socialist leadership.

German jurists in 1933 were immediately confronted with the imposing problem of how to interpret legal statutes predating the Nazi takeover, many of which stemmed from Germany's first experiment in republican government, the Weimar Republic. Indeed, because the Nazis tarried somewhat before instituting their own explicitly National Socialist laws, the question of how pre-Nazi era statutes were to be interpreted by administrators and judges remained of central significance for much of the Nazi period. The fact that the overwhelming majority of jurists faced with the task of applying and interpreting such laws had been trained in pre-National Socialist conceptions of legal interpretation simply exacerbated the problem at hand from the perspective of Germany's new power holders. In the simplest terms, two alternatives seem to have presented themselves: one could try to bind judges tightly to preexisting statutes by insisting that they continue to employ relatively traditional formalistic decisionmaking devices, or one could argue that National Socialist judges had no obligation to laws predating the "national revolution" of 1933. Conveniently, the former position might reassure traditional elites, influential in the courts and administration during the regime's early years, that National Socialism was less frightfully subversive than its more militant representatives implied. At the same time, this option risked binding judges and administrators to laws utterly incompatible with National Socialist aspirations. While an embrace of the latter position might nicely serve Nazi policy aims, it risked legitimizing a freewheeling "activist" judiciary which might feel empowered to act, with no perceived order, in opposition to National Socialism. In light of the relative methodological heterogeneity of German jurists in the immediate aftermath of Hitler's takeover, this second option implied obvious political risks for National Socialism.

Relying on his theoretical reflections of the legal indeterminacy question, Schmitt formulates an ingenious solution to this enigma. First, he argues against simply discarding the idea of a

binding system of law altogether. Clearly worried by the spectre of activist judges hostile to National Socialism, Schmitt insists against the second possibility described above that judicial action always requires some basis in the law. Judges should not be allowed to act *ex nihilo*; they must be able to ground their actions in *some* legal act.⁴⁹ But this hardly leads Schmitt to embrace the competing view that judges are bound to pursue traditional modes of judicial interpretation when faced with statutes predating the Nazi period. According to Schmitt, this first view presupposes an anachronistic liberal view of legal determinacy. Refashioning familiar arguments, Schmitt cleverly asserts that those who support traditional views of legal determinacy badly obscure the fact that no legal text can provide real guidance to decisionmakers. In this view, the interpretation of any legal text is ultimately determined by the particular "spirit" inhering, as he put it in his ethnicist gloss on Montesquieu in *State, Movement, Folk*, in the "different mouths" that "'pronounce' the same words so differently."⁵⁰ Thus, it is mistaken to claim that preexisting legal statutes necessarily conflict with National Socialism; such a view presupposes a degree of determinacy necessarily missing from the legal materials at hand. Those appealing to the text of pre-1933 laws, in order to challenge National Socialism, are simply juxtaposing their own (anti-Nazi) ethnic and intellectual "spirit" to the "spirit" of National Socialism. For Schmitt, they cannot legitimately claim to speak even in the name of those legal texts that seem overtly anti-Nazi in character.⁵¹

In this account, the very attempt to formulate the problem at hand as a choice between "judicial discretion" and "the binding of the judge to the statute" is incorrect in light of its implicit dependence on certain liberal legal illusions. In a pivotal but generally overlooked 1936 essay, Schmitt describes the manner in which traditional modes of legal interpretation in Germany before 1933 tended to emphasize the semantic structure of the legal norm as a way of avoiding the problem of undertaking to resolve conflicts

⁴⁹ See Carl Schmitt, *Neue Leitsätze für die Rechtspraxis*, 62 JURISTISCHE WOLHENSCHRIFT 350-51 (1934); *Nationalsozialismus*, *supra* note 41, at 716. Consistent with his analysis of legal indeterminacy, Schmitt's concept of binding the decisionmaker to the statute is an extremely minimal one: it merely requires that the judge or administrator be able to identify some basis within the legal code for his actions, even if that basis is nothing more than an open-ended clause such as "public morals" or "in good faith."

⁵⁰ SCHMITT, *supra* note 17, at 45.

⁵¹ See Carl Schmitt, *Der Weg der Deutschen Juristen*, 39 DEUTSCHE JURISTENZEITUNG 691, 692-95 (1934).

between the heterogeneous interests that played a role in the legislative history of the statute.⁵² Faced with the unenviable task of trying to determine legislative intent in a pluralistic political world in which it was virtually impossible to do so, Schmitt concedes that it made some sense for pre-Nazi jurists to pursue a kind of interpretative literalism according to which "the statute is always more clever than the lawmaker."⁵³ But Nazi judges have no reason, even if it were possible to do so in the first place, to privilege the text of the statute over the task of ascertaining the underlying "spirit" of the legal order as a whole. In contrast to the pluralistic character of liberal parliamentary politics, Schmitt argues, National Socialist legislation represents a coherent application of the fundamentals of National Socialist ideology, as sketched out in the Nazi Party Program as well as in a series of statements of legislative intent that function as helpful guides for judges and administrators trying to ascertain the basic principles of Nazi law. In this qualitatively different political context, there no longer is any pressing reason why the legal text should be favored vis-a-vis interpretations that may seem to depart from the semantic structure of the legal text. In the homogeneous ethnic and political universe of National Socialism, a central rationale behind interpretive literalism no longer obtains.⁵⁴

For Schmitt between 1933 and 1936, there is only one path to legal determinacy: all laws must be interpreted in accordance with the coherent ethnic and intellectual "spirit" of National Socialism. For this reason, the creation of a judiciary exemplifying that same ethnic and ideological spirit is absolutely pivotal; "alien" ethnic groups will never feel at home in a concrete order not of their "kind" (*Art*). In the relatively limited case of a judge applying a piece of explicitly National Socialist legislation, it may even appear at first glance that the judge or administrator is simply engaging in a traditional mechanical application of the statute.⁵⁵ Nonetheless, the real force at work, even in this scenario, is the question of the

⁵² See Carl Schmitt, *Aufgabe und Notwendigkeit des Deutschen Rechtsstandes*, 6 DEUTSCHES RECHT 181 (1936).

⁵³ *Id.* at 184; see also Carl Schmitt, *Die Geschichtliche Lage der Deutschen Rechtswissenschaft*, 41 DEUTSCHE JURISTEN-ZEITUNG 15, 16 (1936).

⁵⁴ See Schmitt, *supra* note 52, at 183-85. Of course, National Socialist ideology is arguably less coherent or consistent than Schmitt claims here. Perhaps this is why he seems so concerned in this period with underlining what he takes to be its core element, namely the pursuit of ethnic homogeneity (*Gleichartigkeit*). In this way, he hopes to clarify the essential ideological and "spiritual" core of National Socialism, which legal actors can then refer to when deciding cases.

⁵⁵ See *id.* at 184.

spirit interpreting and applying the law. Schmitt concedes that vague, open-ended clauses easily lend themselves to an interpretation in accordance with the basic principles of National Socialism. But even seemingly crystal clear pre-Nazi statutes quite legitimately can be interpreted in accordance with National Socialism: the ethnic predispositions and spiritual commitments of the juridical decisionmaker, and not the semantic attributes of the legal text, unavoidably are the truly decisive factors in legal interpretation. In this account, "[t]he binding [of the judge] rests on his adaptation (*Einfügung*) to an order of the folk resting on ethnic and racial homogeneity."⁵⁶ Only an estate of jurists intimately bred and trained in the particular legal mores and modes of thinking of the German folk is likely to interpret the law in a manner consistent with other legal practitioners who participate in the same shared ethnic community or concrete order.

For the National Socialist leadership in the years immediately after the demise of Weimar, Schmitt's argumentation here must have seemed heaven-sent. His position demands judicial compliance to National Socialist ideology while simultaneously countering the risky spectre of forms of judicial activism inimical to Nazi ideology. Schmitt pays lip-service to classical ideas of a judge being "bound" to law, thereby assuaging the fears of relatively traditional jurists potentially alienated by the radical anti-legalist features of National Socialism, while in reality legitimizing a dramatic loosening of traditional forms of legal binding. This view makes every element of German law potentially subordinate to Nazi policy aims, without requiring potentially time consuming changes in the legal code. Unsurprisingly, Schmitt's ideas were eagerly embraced by some Nazi leaders, and his model of legal interpretation exercised a real influence on National Socialist legal thinking throughout this period.⁵⁷

Far more clearly than many of his colleagues, Schmitt presciently grasped that National Socialism was fundamentally hostile to any system of traditionally conceived binding law, even one fundamentally racist and anti-Semitic in character. More clearly than

⁵⁶ Schmitt, *supra* note 51, at 698.

⁵⁷ Instead of waiting for new statutes, judges and administrators in Germany simply ignored the language of existing law whenever it conflicted with Nazi policy or aims. In this way, classical rule of law protections were discarded not first and foremost by legislation, but simply by a novel set of judicial devices. For our purposes here, it is important to recognize that Carl Schmitt offered an especially intelligent defense of this practice. See generally BERND RÜTHERS, *ENTARTES RECHT: RECHTSLEHREN UND KRONJURISTEN IM DRITTEN REICH* 101-80 (C.H. Beck ed., 1994) (discussing Schmitt and Nazi law).

even those jurists whose pre-1933 Nazi credentials were far more weighty than his own, Schmitt appreciated that the establishment of an altogether novel, identifiably National Socialist legal code was at best unnecessary for the Nazi leadership, and at worst a potential impediment likely to be exploited by legal traditionalists who might use it in order to limit the awesome power of the Nazi power elite. Indeed, a constant theme in Schmitt's writings in this period is the ever-lurking danger of those who speak in the name of the "rule of law" while, in effect, trying to squash the National Socialist quest to construct what, for Schmitt, represents a superior, historically unprecedented system of legal determinacy via "the reform of jurists."⁵⁸ For Schmitt, the mushy and misleading concept of the rule of law is best discarded. He tends to consider the term Leader State (*Führerstaat*) a better description of National Socialism. Although National Socialism allegedly seeks legal determinacy and some measure of predictability, Schmitt repeatedly insists, its rendition of them differs qualitatively from that of its historical predecessors.⁵⁹

In this account, those in favor of the establishment of a new expressly National Socialist legal code continue to pray at the altar of the liberal normativistic empty fiction of a gapless system of airtight, binding legal norms. He reminds those who disparage what may initially appear to be mere minor changes or amendments to the existing German legal code that even such alterations can function effectively to bring about profound and potentially revolutionary changes in the legal system.⁶⁰ In fact, Schmitt considers the National Socialist seizure of power a perfect example of this jurisprudential verity.⁶¹ For Schmitt, those who insist on establishing a

⁵⁸ Richard Weisberg's detailed analysis of Vichy law might be taken as evidence that Schmitt's worries about a residual legalism were overstated: although French jurists during the Vichy period appear to have preserved more elements of a traditional legalistic approach than their colleagues on the other side of the Rhine, they nonetheless managed to play a crucial role in Vichy's most heinous crimes. See RICHARD WEISBERG, *VICHY LAW AND THE HOLOCAUST IN FRANCE* (1996). In my view, much more comparative analysis of the French, German, and Italian variants of fascist law is needed.

⁵⁹ See Schmitt, *supra* note 44, at 27; Carl Schmitt, *Was Bedeutet der Streit um den Rechtsstaat?*, 95 ZEITSCHRIFT FÜR DIE GESAMTE STAATSWISSENSCHAFT 189-201 (1935) [hereinafter Schmitt, *Rechtsstaat*]; Carl Schmitt, *Epilogue* to GÜNTHER KRAUS & OTTO VON SCHWEINICHEN, *DISPUTATION ÜBER DER RECHTSSTAAT* 85 (1935).

⁶⁰ See Carl Schmitt, *Kodifikation oder Novelle*, 40 DEUTSCHE JURISTEN-ZEITUNG 919, 923-24 (1935).

⁶¹ He describes this in great detail in a series of writings endorsing the Nazi establishment of power. See Carl Schmitt, *Das Reichstatthaltergesetz*, in 3 DAS RECHT DER NATIONALEN REVOLUTION 3 (1933); SCHMITT, *supra* 17, at 5-11; Carl Schmitt, *Das Gesetz zur Behebung der Not von Volk und Reich*, 38 DEUTSCHE JURISTEN-ZEITUNG 455

new Nazi legal code simply fail to appreciate the intellectual and political novelty of the emerging National Socialist legal system. "The judge in the Leader State is bound to the law, but this law has a different internal structure than the law of other constitutional systems."⁶² Because the judge partakes of the same ethnic community and folk spirit as the supreme lawmaker, the judge can legitimately veer, when necessary, away from the express letter of the law in order to make sure that the will of the supreme Leader is respected in the individual case at hand. In this view, the judge is an assistant and even colleague (*Mitarbeiter*) of the Leader, because both partake of a shared ethnic and spiritual background, and thus are "bound" together by something far more profound than the semantic structure of the legal text.⁶³ Only because the establishment of racial and ethnic homogeneity makes a binding of this sort possible can National Socialism permit judges to interpret legal texts in what may wrongly appear, from the vantage point of a more traditional jurisprudential perspective, to be a discretionary or even arbitrary manner.

At first glance, this argument might appear to represent an attempt to improve the stature of the judge by justifying a measure of judicial independence in relation to the Nazi leadership. But for Schmitt, judges are by no means thereby outfitted with unlimited discretionary privileges in relation to the National Socialist spirit of the legal code as a whole. No judicial action incompatible with the mores and spiritual currents of National Socialism is to be tolerated. Moreover, for Schmitt, that spirit is coherently and consistently defined by the Nazi leadership and, most importantly, Adolf Hitler. Schmitt goes so far as to proclaim that Nazi law is sure to be far more determinant and predictable than law ever was within liberal democracy. Notwithstanding the Nazi abandonment of liberal concepts of legal determinacy, Schmitt proudly declares, National Socialism provides more legal regularity than any competing legal system in the world.⁶⁴ Whereas liberal democracy continues to stumble along the worn-out path of normativistic liberalism, Nazism alone undertakes the quintessentially modern task of guaranteeing legal determinacy by means of "the reform of jurists."

(1933); Carl Schmitt, *Das Staatsnotrecht im Modernen Verfassungsleben*, 25 DEUTSCHE RICHTERZEITUNG 254 (1933).

⁶² Schmitt, *supra* note 60, at 924.

⁶³ See *id.*; see also Schmitt, *supra* note 52, at 184-85. Of course, the same logic justifies outfitting the Führer with legally unlimited administrative and legislative powers.

⁶⁴ See Schmitt, *supra* note 41, at 716.

III.

In 1936, segments of the SS (*Schutzstaffel*), allied with a number of Schmitt's most embittered rivals in the legal academy, succeeded in forcing Schmitt to give up a number of his posts. Although Schmitt would soon experience a comeback of sorts as a respected National Socialist expert on international law, there is no question that Schmitt's political defeat in 1936, at least temporarily, limited his impact on the ongoing construction of a National Socialist legal order.⁶⁵

In light of the story told above, there is a certain irony to Schmitt's political troubles in 1936. After arguing vehemently that only the ethnic cleansing of the German judiciary could provide a new form of binding, determinant law, Schmitt himself came face to face with the most obvious failing of his position: ethnic homogeneity is unlikely to go far in assuring jurisprudential consistency or agreement. In 1936, even those "existentially" homogeneous colleagues who shared Schmitt's enthusiasm for National Socialism disagreed so heatedly with Schmitt about the proper contours of a National Socialist legal order that they willingly expended a great deal of political capital in order to do serious political damage to Schmitt. National Socialism did its best to exterminate the spectre of "the fact of pluralism."⁶⁶ But even its awesome power proved unable to guarantee Nazism complete victory in its struggle against the basic contours of a modern pluralistic intellectual universe. Although it would be silly to chalk up disagreement among Nazi lawyers to a victory for modern pluralism, it would be no less problematic to miss the ways in which continuing disagreement, even among hardcore Nazi jurists, suggests the inherent fragility of Schmitt's view that a shared "existential determination" of judicial decisionmaking could produce a novel post-liberal form of legal determinacy. Schmitt's hope that ethnic cleansing might help se-

⁶⁵ For a reliable account of this feud, see RÜTHERS, *supra* note 57, at 81-108. I limit my discussion here to Schmitt's "early" Nazi era writings here not because I believe that Schmitt tries to distance himself from the Nazis after 1936, but simply because the theoretical issues raised by his "late" Nazi writings are very different from those addressed by him between 1933 and 1936. In my forthcoming book, I address Schmitt's post-1936 turn to international law. See WILLIAM E. SCHEUERMAN, *THE END OF LAW: CARL SCHMITT'S POLITICAL AND LEGAL THEORY* (forthcoming 1998). For important discussions of Schmitt's Nazi-era discussions of Thomas Hobbes, who gains a special place in Schmitt's thought during this period, see David Dyzenhaus, "Now the Machine Runs Itself": *Carl Schmitt on Hobbes and Kelsen*, 16 *CARDOZO L. REV.* 1 (1994); John P. McCormick, *Fear, Technology, and the State: Carl Schmitt, Leo Strauss, and the Revival of Hobbes in Weimar and National Socialist Germany*, 22 *POL. THEORY* 619 (1994).

⁶⁶ JOHN RAWLS, *POLITICAL LIBERALISM* 192 (1993).

cure legal determinacy ultimately proved more fantastic than even the most overstated liberal "empty fiction" of a gapless, airtight legal code, in which the judge is nothing more than "*la bouche, qui prononce les paroles de la loi*."⁶⁷

Nonetheless, judicial decisions in Nazi Germany did prove overwhelmingly consistent with the "spirit" of National Socialism.⁶⁸ Yet this consistency was guaranteed, first and foremost, by institutional and political mechanisms. As Otto Kirchheimer, German-Jewish emigre and one-time left-wing aficionado of Schmitt's jurisprudence observed in a prescient 1941 discussion of Nazi law:

the [Nazi] judge, like any other administrative official, is accountable for the contents of his decision. Where the relentless pressure of the party through channels like the *Schwarze Korps* should prove of no avail, the new, organizational statutes provide ample facilities for discharging or transferring a recalcitrant judge. The judiciary is entitled to have and to express opinions of its own only in those cases where it does not act as a kind of common executive organ to the combined ruling classes.⁶⁹

In the final analysis, the most important feature of Schmitt's contributions between 1933 and 1936 is that they contributed systematically to precisely this subordination of the judiciary to the Nazi power elite. In this sense, Schmitt's writings did help guarantee a special form of legal determinacy. Yet this legal determinacy had nothing to do with earlier liberal conceptions of determinant law, nor can its "success" in guaranteeing a measure of consistency in legal action be traced to the (mythical) binding power of common ethnic roots.

As Kirchheimer notes, for classical liberalism the rationality of law stemmed from its predictable character, which meant that

contending individuals and groups, though they are never sure which of the many possible interpretations of their behavior will prevail in a given case, usually could confine their actions within such limits that these could not be said to contradict openly the

⁶⁷ MONTESQUIEU, *supra* note 21.

⁶⁸ See INGO MÜLLER, *HITLER'S JUSTICE: THE COURTS OF THE THIRD REICH* (Deborah Lucas Schneider trans., 1991); *RECHT UND JUSTIZ IM DRITTEN REICH* (Ralf Dreier & Wolfgang Sellert eds., 1989); *RECHT, RECHTSPHILOSOPHIE UND NATIONALSOZIALISMUS* (Hubert Rottleuthner ed., 1983); MICHAEL STOLLEIS, *RECHT IM UNRECHT: STUDIEN ZUR RECHTSGESCHICHTE DES NATIONALSOZIALISMUS* (1994).

⁶⁹ OTTO KIRCHHEIMER, *The Legal Order of National Socialism*, in *POLITICS, LAW & SOCIAL CHANGE: SELECTED ESSAYS OF OTTO KIRCHHEIMER* 88, 102-03 (Frederic S. Burin & Kurt L. Shell eds., 1969).

wording of the law and the procedural requirements of the established courts and agencies.⁷⁰

In traditional liberalism, legal rationality rested in part on the existence of relatively determinant, universally applicable rules "which could be referred to by the ruling and the ruled alike and which thus might restrict the arbitrariness of the administrative practice."⁷¹ For Kirchheimer, Nazi law is also "rational," yet this rationality takes an altogether different form from that of liberalism. "Rationality here means only that the whole apparatus of law and law-enforcing is made exclusively serviceable to those who rule."⁷² In this legal manifestation of what Kirchheimer describes as a form of truncated technical rationality, what counts is that legal decisionmakers provide a legal veneer for the political preferences of the ruling elite. In this caricature of liberal conceptions of legal determinacy, determinacy simply means that legal decisions cohere as closely as possible to the will of the Nazi leadership. In Kirchheimer's account, this post-liberal form of legal determinacy represents an unprecedented attempt to introduce the "industrial methods of taylorism . . . into the realm of statecraft in order to get the most precise answer to the question as to how the will of the political leadership can be put into practical effect as speedily as possible."⁷³

There is no question that Schmitt contributed to the achievement of precisely this form of legal determinacy in Germany during the 1930s. By demanding the cleansing of elements potentially hostile to National Socialism and the destruction of any real legal and constitutional limits on the Nazi leadership, Schmitt surely played an important role in making sure that those who interpreted and applied the law rigorously, served the wishes of the National Socialist elite. Although Schmitt's theorizing too often obscures the harsh realities of National Socialist law, at times his own categories inadvertently unmask Nazi legal ideology. By repeatedly emphasizing the notion that the judge is a colleague or "assistant" to the omnipotent Leader, for example, Schmitt comes quite close to an express acknowledgement of one of the most worrisome facets of National Socialist law: both in Schmitt's theory and in National Socialist reality, the judge inevitably becomes a mere administrative accessory of the National Socialist leadership.

⁷⁰ *Id.* at 99.

⁷¹ *Id.*

⁷² *Id.*

⁷³ *Id.* at 100.

IV.

Let me conclude with a brief comment on the possible significance of Schmitt's National Socialist legal theory for contemporary jurisprudence. Today it once again is a commonplace among some jurists that a profound and unavoidable indeterminacy necessarily characterizes the legal system. In the words of critical legal scholar Mark Kelman:

*All rules will contain within them deeply embedded, structural premises that clearly enable decisionmakers to resolve particular controversies in opposite ways [A]ll law seems simultaneously either to demand or at least to allow internally contradictory steps.*⁷⁴

Notwithstanding traditional liberal aspirations for a binding and relatively determinant set of legal norms, law turns out to contain an irrepressible moment of arbitrariness. Legal categories are simply "empty vessels" filled by acts of power that force meaning into them. In this view, all cases are "hard cases."

My aim here is not to attribute proto-fascistic tendencies to some strands of contemporary legal theory. But if I am not mistaken, few contemporary jurists sympathetic to the radical indeterminacy thesis are even remotely familiar with the fact that twentieth century Germany's leading authoritarian right-wing jurist long toyed with similar notions. In contrast to most present-day proponents of the radical indeterminacy thesis, however, Schmitt was ultimately unsatisfied with simply deconstructing the liberal rule of law. As we have seen, Schmitt additionally undertook the reconstructive task of formulating a post-liberal conception of legal determinacy, in which the radical indeterminacy thesis nonetheless continues to function as an analytic presupposition for an alternative understanding of legal interpretation.

I suspect that some contemporary radical jurists are likely to consider Schmitt's attempt to salvage legal determinacy as ultimately inconsistent with his initial acceptance of the radical indeterminacy thesis. From their perspective, Schmitt's attempt to establish legal determinacy by means of ethnic homogeneity represents a particularly revealing example of the profound evils inherent in the anachronistic "formalist" quest for legal determinacy. For those who accept this interpretation, Schmitt's Nazi era writings will simply confirm the advantages of a rigorous version of the radical indeterminacy thesis, according to which any attempt to

⁷⁴ MARK KELMAN, A GUIDE TO CRITICAL LEGAL STUDIES 258 (1987).

buttress the "myth" of legal determinacy is doomed to fail.

Another interpretation of Schmitt's National Socialist theory is possible as well. In this alternative line of inquiry, Schmitt merely takes some tendencies within radical jurisprudence a step further than their contemporary practitioners have done thus far. Rather than resting satisfied with the ambiguous implications of the radical indeterminacy thesis, Schmitt simply tackles the hard questions often ignored by contemporary radical jurists, despite the fact that they follow logically from the radical indeterminacy thesis: what exactly should replace the liberal rule of law and its emphasis on relatively determinate rules? What type of legal order is possible in the shadows of the indeterminacy thesis? What form should a post-liberal legal system take in light of the inherent indeterminacy of liberal law? The fact that Schmitt offers an ominous totalitarian antidote to the crisis of legal indeterminacy may suggest that the reconstructive task at hand is likely to prove more difficult than some contemporary defenders of the radical indeterminacy thesis concede. Like Schmitt, at least some of them seem bent on purging legal theory of even the most minimal elements of the liberal political and legal tradition. One of the most important unintended achievements of Schmitt's theory is that it systematically outlines the basic contours of an alternative legal model that welds antiliberalism to the radical indeterminacy thesis.

At the very least, it seems incumbent on some contemporary radical jurists to do a better job explaining why their embrace of the radical indeterminacy thesis need not succumb to the ills so evident in Schmitt's National Socialist writings. The case of Schmitt clearly contradicts the dogmatic assumption shared by some jurists today "that liberating those who wield legal power from the 'mistaken' belief that legal doctrine constrains their actions will have a progressive effect."⁷⁵

⁷⁵ Solum, *supra* note 12, at 500.

